REMARKS

Status of the Claims

Claims 1-4, 9, 14, 15, 19, 20, 23, 24, 26, 28, 29, 32, 34, 36, 38, 47, 62, 64, 78, 87, 88, 91, and 177 are pending in this application, of which claims 1, 3, 9, and 177 are independent claims. No amendments are being made with this response.

Applicant reserves the right to pursue any of the canceled and/or non-elected subject matter in the present application and/or in one or more continuation or divisional applications.

Information Disclosure Statement

An Information Disclosure Statement along with its supporting documents, is being filed concurrently herewith. The Examiner is respectfully requested to consider the references cited therein, to initial and date the SB08 form, and return the initialed form to the undersigned.

Restriction Requirement

On pages 2-6 of the instant action, the Office has required restriction to one of the following groups:

Group 1: claims 1, 2, 4, 14, 15, 19, 20, 23, 24, 26, 28, 29, 32, 34, 36, 38, 47, 62, 64, 78, 87, 88, and 91, drawn to a method of identifying a subject having a cancer who is likely to benefit from a therapy comprising acquiring a value for the level or activity of CD4 or CD8 immune effector cells.

Group 2: claim 3, drawn to a method of selecting a therapy for a subject having a cancer comprising acquiring a value for the level or activity of CD4 or CD8 immune effector cells.

Group 3: claim 9, drawn to a method of treating a subject having cancer comprising responding to a value for the level or activity of CD4 or CD8 immune effector cells.

Group 4: claim 177, drawn to a method of stratifying subjects having a cancer into a first group and a second group comprising acquiring a value for the level or activity of CD4 or CD8 immune effector cells.

In Response to the Restriction Requirement, Applicant hereby elects Group 1 for continued examination. Claims 1, 2, 4, 14, 15, 19, 20, 23, 24, 26, 28, 29, 32, 34, 36, 38, 47, 62, 64, 78, 87, 88, and 91 read on this group. This election is made without traverse.

CONCLUSION

In the event that an additional election is necessitated by the claims presented herein, the Examiner is urged to contact the undersigned at the telephone number listed below to discuss the election.

A request for extension of time is filed concurrently herewith making this response timely filed on or before September 15, 2026. If this response is not considered timely filed and if a request for an extension of time is otherwise absent, Applicant hereby requests any necessary extension of time. Applicant believes no additional fee is due with this response, other than those listed on the accompanying transmittal. However, if an additional fee is due, the Director is hereby authorized to charge any deficiency in the fees filed, asserted to be filed or which should have been filed herewith to our Deposit Account No. 02-1818, under Order No. C2160-7032US(PAT059044-US-PCT) from which the undersigned is authorized to draw.

Dated: September 15, 2026

Respectfully submitted,

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